

22AHCV00930 22AHCV00930

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Motion: MOTION TO BIFURCATE
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Case Number: 22AHCV00930 Hearing Date: June 25, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

JOHN
MORALES,

Plaintiff(s),

vs.

LOS
ANGELES COUNTY METROPOLITAN TRANSPORTATION AUTHORITY, et al.,

Defendant(s).

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CASE NO.: 22AHCV00930

[TENTATIVE]

ORDER RE: MOTION TO BIFURCATE

Dept.

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8:30

a.m.

June 25,

2026

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I.

INTRODUCTION

On May 29, 2026,
defendants/cross-complainants Los Angeles County Metropolitan Authority
("LACMTA") and Alfred Murrillo ("Murrillo") (collectively, "Defendants") filed
this motion for an order bifurcating trial in this matter to address issues of
liability before damages.

Plaintiff John Morales ("Plaintiff")
filed an opposition brief on June 15, 2026.

Defendants filed a reply brief on June 18, 2026.

II.

DISCUSSION

This action arises from a multi-vehicle collision on the westbound Interstate 10 near Fremont Avenue involving a LACMTA bus operated by Murrillo. Plaintiff was a passenger on the bus, which collided with a stopped vehicle in the No. 1 HOV/HOT lane. The stopped vehicle, according to its owner, Valeria Garcia ("Garcia"), had sustained a flat tire and was unable to be moved from the HOV lane to the emergency lane. Garcia's vehicle was located west of a blind curve in the freeway when co-defendant Octavio Covarrubias ("Covarrubias") collided with Garcia's vehicle after rounding and coming out of the same blind curve. The LACMTA bus then came upon the scene and Plaintiff sustained injuries as a result.

Under Cal. Code of Civil Procedure § 598, the court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party after notice and hearing, order that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case. The objective of the bifurcation statute is the avoidance of waste of time and money caused by unnecessary trial of damage questions in cases where the liability issue is resolved against the plaintiff. (Trickey v. Superior Court In and For Sacramento County (1967) 252 Cal.App.2d 650, 653.)

Defendants contend that bifurcating trial into separate phases to address issues of liability before damages will conserve judicial resources because there would be no need to introduce lengthy testimony and evidence of Plaintiff's injuries if no liability is found. Defendants argue that, without bifurcation, there is the risk that sympathy from extensive damages evidence will influence the liability determination.

In opposition, Plaintiff argues that bifurcation will not conserve judicial resources because the issues of liability and damages overlap and cannot be easily untangled. However, Plaintiff identifies no particular witness or evidence that would need to be

presented twice if bifurcation were granted and liability determined first. Issues of medical treatment, the reasonableness of medical expenses, causation, and Plaintiff's future care could all be reserved for a damages phase and do not need to be introduced in conjunction with evidence that is relevant to a liability determination, which involves roadway conditions, visibility, prior collisions and disabled vehicles, the bus operator's perception and response, and whether the incident was avoidable.

III.

CONCLUSION

Defendants' motion for bifurcation is
GRANTED.

Dated
this 25th
day of June 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.